

Tentative Rulings
May 20, 2026
Department S-17
Judge Joseph Ortiz

Tentative Rulings for Department S-17 are posted on the court's website (<https://www.sb-court.org/divisions/civil/civil-tentative-rulings>) at 3:00 p.m. or at 7:00 p.m. the court day before the hearing. If no tentative ruling is posted at 3:00 p.m., please check again after 7:00 p.m.

Unless you wish to submit on the tentative ruling, you must appear for the hearing either in person, CourtCall (888-882-6878 or www.courtcall.com), or by ZOOM. Failure to appear is deemed a waiver of oral argument. If you wish to submit to the tentative, please call the Judicial Assistant at (909) 708-8715 in advance of the hearing. If all parties submit on a tentative ruling, it will become final. The tentative ruling may seek input on particular issues and direct appearance. If so directed, attendance at the hearing is mandatory. The party prevailing on a motion or other hearing shall serve written notice of the court's ruling unless all parties waive notice of the ruling.

ATTENTION: As of January 9, 2023, the court no longer provides an official Court Reporter to transcribe proceedings. Parties who wish to have a transcript must retain their own private reporter and must submit a "Stipulation and Order to Use Certified Shorthand Reporter." Please contact the Department if you need this form. Parties who do not retain their own reporter have waived the right to one.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

15. *Strege, et al, v. Ford Motor Company, et al*, Case No. CIVSB2437208
Defendant Ford's Demurrer to Second Amended Complaint
5/20/26, 9:00 a.m., S-17

Tentative Ruling

The Court would **OVERRULE** Defendant's Demurrer to the Third Cause and **ORDER** Defendant to file and serve its Answer to the Second Amended Complaint (SAC) within twenty days.

Case Summary

This is a lemon law case. On or about February 23, 2019, Plaintiffs purchased the subject vehicle. They assert that the vehicle included warranties. However, they assert that there were transmission defects and nonconformities within the warranty period. They assert that Defendant knew or should have known of the defects and should not have sold the vehicle. They further allege that Defendant concealed its knowledge of the defects. Notwithstanding, they also alleged they are entitled to replacement or restitution, and that, despite adequate opportunity, Defendant has failed to provide replacement or restitution. As such, they filed suit on December 17, 2024. After multiple demurrers, Plaintiff filed the operative SAC on January 22, 2026, alleging causes of action for (1) violation of the Song-Beverly Act – Breach of Express Warranty; (2) violation of the Song-Beverly Act – Section 1793.2; (3) Fraudulent Inducement – Concealment; and (4) Negligent Repair. This demurrer to the third cause for Fraudulent Inducement cause followed.

Analysis

Fraud by concealment requires that the defendant owed a duty to disclose. "A duty to speak may arise in four ways: it may be directly imposed by statute or other prescriptive law; it may be voluntarily assumed by contractual undertaking; it may arise as an incident of a relationship between the defendant and the plaintiff; and it may arise as a result of other conduct by the defendant that makes it wrongful for him to remain silent." (*SCC Acquisitions, Inc. v. Central Pacific Bank* (2012) 207 Cal.App.4th 859, 860.) Our Supreme Court has described the necessary relationship giving rise to a duty to disclose as a "transaction" between the plaintiff and defendant: "In transactions which do not involve fiduciary or confidential relations, a cause of action for non-disclosure of material facts may arise in at least three instances: (1) the defendant makes representations but does not disclose facts which materially qualify the facts disclosed, or which render his disclosure likely to mislead; (2) the facts are known or accessible only to defendant, and defendant knows they are not known to or reasonably discoverable by the plaintiff; (3) the defendant actively conceals discovery from the plaintiff." (*Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 311, citing *Warner Construction Corp. v. City of Los Angeles* (1970) 2 Cal.3d 285, 294.)

Furthermore, the facts that constitute fraud must be alleged fully, factually, and specifically. (*Wilhelm v. Pray, Price, Williams & Russell* (1986) 186 Cal.App.3d 1324, 1331.) The purpose of

the specificity requirement is to give notice to the defendant and to furnish the defendant with certain definite charges that can be intelligently met. (*Alfaro v. Community Housing Improvement System & Planning Assn, Inc.* (2009) 171 Cal.App.4th 1356, 1384.)

Here, the pleadings still bluntly posit that certain of Defendant's "agents actively concealed the existence and nature of the . . . Transmission Defect from Plaintiffs at the time of purchase or lease, repair, and thereafter." (SAC, ¶153.) However, in this iteration, Plaintiffs now indicate that *some* sort of communication occurred, albeit from still-unnamed and unidentified agents: They now indicate that Defendant "made partial misleading representations regarding the . . . transmission's performance and characteristics despite its extensive internal knowledge of the . . . Transmission Defect . . ." (SAC, ¶131; see also SAC, ¶134 [disclosed characteristics of drive quality and performance but failed to mention defect].) While the prior iteration seemed to rest only on marketing materials, this iteration now appears – at least impliedly – to set forth sales discussions at the heart of the cause for concealment.

In construing the above allegation in light of the additional allegations relating to prior knowledge and Plaintiffs' need to be aware of such defects, it appears the claims are now sufficiently pleaded. Plaintiffs have pleaded (1) the matter of the defective transmission having been concealed; (2) the concealing of the defect within marketing materials, advertisements, and through the dealership; (3) Defendant's knowledge of the defect; and (4) the effect of the nondisclosure. This sufficiently alleges the elements for fraudulent concealment and specifies the matter, means, and effect of the alleged concealment.

16. *Santamaria v. Gulf Harbour Investments Corp.*, Case No. CIVSB2519211
Defendant's Demurrer to First Amended Complaint
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would again **SUSTAIN** with twenty days' leave to amend.

Case Summary

This is, in essence, an unjust enrichment case. Plaintiff alleges that he financed three properties in the City of Ontario (collectively, the Subject Property) for the purpose renting them out. He had a first loan and a second junior loan. Eventually, the second loan was purchased by Defendant Gulf Harbour, who later initiated foreclosure. The at-issue property was subject to a nonjudicial trustee's sale on September 8, 2021, but the sales amount was insufficient to pay

off the first senior loan; thus, the debt remained an outstanding encumbrance against the Subject Property following the sale.

Plaintiff alleges that, through all of this, he never received any notices regarding the sale and thus continued paying the mortgage on the senior loan. He also states he was motivated to continue making those mortgage payments to preserve his credit. He made those payments for a total of 17 months, from September 2021, through January 30, 2023. Plaintiff asserts he did *not* receive the Notice of Default, Notice of Trustee's Sale, Trustee's Deed Upon Sale, or any Notice to Quit prior to the beginning of eviction proceedings. (FAC, ¶20.) Thus, he asserts a lack of prior notice and a mistaken belief of continued ownership.

Relevant to the inquiry of notice, however, in April of 2022, Plaintiff's tenants informed him that a realtor had visited the subject property to take photographs. (FAC, ¶22.) Then, on May 4, 2022, a tenant provided Plaintiff with a copy of an unlawful detainer action, which asserted ownership adverse to Plaintiff. (FAC, ¶24.) Plaintiff obtained a June 10, 2022 Preliminary Title Report that confirmed a trustee's sale had occurred and that title had been transferred to Defendant Gulf Harbour. (FAC, ¶25.)

As such, he first filed suit on July 2, 2025. After a sustained demurrer, Plaintiff filed a First Amended Complaint (FAC) on January 12, 2026, alleging causes of action for (1) unjust enrichment/ restitution and (2) money had and received. This second demurrer followed.

Analysis

In this case, Defendant largely asserts that the two causes of action are time-barred by the relevant statutes of limitation. Importantly, the initial complaint was not filed until July 2, 2025.

Unjust Enrichment (First Cause): For unjust enrichment based on fraud or mistake is three years from the date of discovery. (*Federal Deposit Ins. Corp. v. Dintino* (2008) 167 Cal.App.4th 333, 348.) Here, Defendant argues that Plaintiff discovered the foreclosure on May 4, 2022, when he received the unlawful detainer action, which he later confirmed by Preliminary Title Report issued on June 10, 2022. The suit, however, was filed on *July 2, 2025*, beyond the 3-year period.

Money Had and Received (Second Cause): For a cause for money had and received, a cause of action "lies wherever one person has received money which belongs to another, and which in equity and good conscience should be paid over to the latter." (*Gutierrez v. Girardi* (2011) 194 Cal.App.4th 925, 937, quoting *Schultz v. Harney* (1994) 27 Cal.App.4th 1611, 1623.)

Generally, the statute of limitations for a money had and received claim is two years. (Code Civ. Proc., § 339.) However, where money had and received was the result of fraud or mistake a three-year statute applies. (FAC, ¶55; *Creditors Collection Serv. v. Castaldi* (1995) 38 Cal.App.4th 1039, 1043 [fraud being the basis of the legal injury].) Here, the motivating theme in this case is Plaintiff's mistake. (See, e.g., FAC, ¶¶42-43 & 45 [discussing Plaintiff's mistaken beliefs resulting in certain payments and expenditures].)

Again, Defendant argues discovery as of May 4, 2022, later confirmed by a June 10, 2022, Title Report. Thus, initially, the two-year statute of limitations would have run in May of 2024. However, even if viewed in the context of mistake and a three-year statute of limitation, the statute would have run in May of 2025; again, this is before the date the initial complaint was filed in July of 2025.

Equitable Estoppel: The elements of equitable estoppel are (1) the party to be estopped must be apprised of the facts; (2) he must intend that his conduct be acted upon or must so act that the party asserting the estoppel has a right to believe it was so intended; (3) the other party must be ignorant of the true states of the facts; and (4) he must rely upon the conduct to his injury. (*Schafer v. City of Los Angeles* (2015) 237 Cal.App.4th 1250, 1261, citing and quoting *Strong v. Co. of Santa Cruz* (1975) 15 Cal.3d 720, 425.)

While the FAC appears to attempt to plead facts to equitably estop Defendant from asserting statutes of limitation [FAC, ¶53], the allegations appear insufficient: In essence the new pleadings simply assert that Plaintiff could not have reasonably discovered the sale until May of 2022. (*Ibid.*) First, this allegation does not lead to the conclusion that a later date for the statutes of limitations should apply. Second, even in the alternative, the new allegations do not meet the elements. The Court would, however, allow leave to attempt to provide additional allegations to support a basis for estoppel or other means to avoid the statutes of limitation issues.

17. *Wen v. Wang, et al*, Case No. CIVSB2400408
Def. Wang's Demurrer and Motion to Strike Third Amended Complaint
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **SUSTAIN** as to the tenth cause for identity theft *without* leave to amend. The Court would **OVERRULE** as to the twelfth cause for civil conspiracy.

Case Summary

This is essentially a fraud case brought by a *pro per* Plaintiff. Plaintiff alleges that when she met Defendant Wang, he claimed to be a pastor. She alleges that he assured her that he would look after her home while she was away on a work trip, and she gave him a key based on that representation. However, she alleges that on January 21, 2021, she learned that Defendant Wang had forged Plaintiff's husband's name on a rental agreement with Defendant King. On that basis, Defendant King moved into the home. On this basis, she initially filed suit on January

17, 2024, against Defendant Wang and Defendant King. On October 22, 2024, she filed a First Amended Complaint. Following initial motion work, she filed the at-issue Third Amended Complaint (TAC), alleging twenty-one causes of action, including (1) fraud and deceit (as to Wang & Doe 1); (2) [omitted];¹ (3) trespass (as to all Defendants); (4) [omitted]; (5) [omitted]; (6) [omitted]; (7) [omitted]; (8) [omitted]; (9) [omitted]; (10) identify theft (as to Wang & Doe 1); (11) [omitted]; (12) civil conspiracy (as to all Defendants); (13) negligent infliction of emotional distress (as to all Defendants); (14) intentional infliction of emotional distress (as to all Defendants); (15) negligence per se (as to all Defendants); (16) violation of the unfair competition law (as to all Defendants); and (17) unjust enrichment (as to all Defendants).

This demurrer followed as to the tenth cause of action for identity theft and the twelfth cause for civil conspiracy.

Analysis

Tenth cause (identity theft): Relevant here, Plaintiff alleges that both she and her deceased husband's identities were stolen pursuant to the purported lease agreement between Defendants Wang and King. More specifically, she alleges that Defendant Wang stole the identity of Plaintiff by falsely assuming her identity as the owner of the Subject Property. She also alleges theft of the identity of Plaintiff's deceased husband by falsely assuming his identity as the landlord. (TAC, ¶¶23-26 & 139-140.)

Defendants correctly argue that Plaintiff's identity theft claim fails because the identity theft statutes under which Plaintiff brings this cause of action (namely, Civil Code, §§ 1798.92 - 1798.97) are intended to insulate a victim of identity theft against a third-party claim and are not intended to be used as an affirmative claim as Plaintiff is attempting to do so here. Thus, the statutes appear in apposite.

Under California's Identity Theft Act (CITA) enumerated under Civil Code sections 1798.92 through 1798.97, a "victim of identity theft" can bring an action for damages, civil penalties, and injunctive relief "against a claimant to establish that the person is a victim of identity theft in connection with the claimant's claim against that person." (Civ. Code, § 1798.93(a).) A "claimant" is defined as "a person who has or purports to have a claim for money or an interest in property in connection with a transaction procured through identity theft." (Civ. Code, § 1798.92(a).) A "victim of identity theft" is defined as "a person who had their personal identifying information used without authorization by another to obtain credit, goods, services, money, or property, and did not use or possess the credit, goods, services, money, or property obtained by the identity theft, and has submitted a Federal Trade Commission (FTC) identity theft report." (Civ. Code, § 1798.92(d).)

¹ Plaintiff's TAC maintains the old numbering and simply omits various causes of action from the prior version of the complaint. The Court references now-omitted causes of action for purposes of consistency in referencing the various causes of action.

Here, while Plaintiff alleges that Defendant Wang had “illegally claimed” an interest in Plaintiff’s and her late husband’s assets through the creation and use of the fraudulent lease agreement [TAC, ¶23], this allegation is insufficient to demonstrate a violation under the CITA because Defendant Wang did not obtain credit, goods, services, money, or property from a third-party claimant. Furthermore, Plaintiff does not allege that she has submitted an FTC identity theft report.

Twelfth cause (civil conspiracy): The elements of a civil conspiracy are (1) the formation of a group of two or more persons who agreed to a common plan or design to commit a tortious act; (2) a wrongful act committed pursuant to the agreement; and (3) resulting damages. (*City of Industry v. City of Fillmore* (2011) 198 Cal.App.4th 191, 212.)

Here, Defendants argue that Plaintiff’s conspiracy claim is insufficiently pleaded because the TAC does not sufficiently allege resulting damages because no assets were alleged to be wrongfully detained.

However, here, Plaintiff alleges that Defendants engaged in a civil conspiracy with each other by deceiving Plaintiff into relinquishing the keys to the Subject Property to Defendant Wang, who subsequently allowed Defendant King to move into the Subject Property without Plaintiff’s knowledge or consent. As a result, Defendants stole and obtained fair market value rental funds that Plaintiff could have earned from the rental of the Subject Property. Plaintiff further alleges that she suffered additional damages due to the following: (1) a Dyson vacuum cleaner was no longer working, (2) a whole set of brand new tableware is missing, (3) a cross is missing, (4) a piano was damaged, (5) a wall was damaged, and (5) electric bills were left unpaid. (TAC, ¶¶171-175, 181, 185, & 191.) Such allegations are sufficient to demonstrate the existence of resulting damages for a civil conspiracy claim in the pleading stage.

18. *Banks, et al, v. General Motors LLC, et al*, Case No. CIVSB2203661 (w/ consol. matters)
Plaintiffs’ Motion to Compel Further Responses to Requests for Production, Set 1
5/20/26, 9:00 a.m., Dept. S-17

Tentative Rulings

The Court would **GRANT** Plaintiff’s motion and order Defendant to comply with this Court’s June 26, 2025, order as to request 10. The Court would find substantial justification to forgo sanctions at this juncture, as objections were not waived in the prior order and there appears a good faith attempt to comply. Notably, “[d]iscovery sanctions are intended to remedy discovery abuse, not to punish the offending party.” (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.)

Case Summary

This is a putative wage-and-hour class action. Plaintiff filed suit against Defendants on February 17, 2022. On July 12, 2022, Plaintiffs Banks and Salazar, filed their First Amended Complaint (FAC) alleging (1) violation of the unfair competition law (UCL); (2) failure to pay overtime; (3) failure to pay minimum wages; (4) failure to provide meal periods; (5) failure to provide rest breaks; (6) failure to provide accurate wage statements; (6) failure to pay wages when due; and (7) violation of the Private Attorneys General Act (PAGA). Notably, the UCL and PAGA claims are underpinned by the purported wage-and-hour violations. Importantly, on January 13, 2025, the Court consolidated this action with both matters filed by Plaintiff Spears against Defendant [CIVSB2213324 (wage-and-hour) and CIVSB2218871 (PAGA)].

Relevant here, Plaintiff served the salient Requests for Production, Set One (RFP1) on May 6, 2024. After various extensions and attempts to meet and confer, Plaintiff successfully moved to compel responses to RFP1 on June 26, 2025. (See Tentative, 6/26/25.) Importantly, the order included the at-issue RFP1, number 10.

Analysis

RFP1, number 10, specifically requests production of “all wage or earnings statements issued to PLAINTIFF and CLASS MEMBERS during the CLAIM PERIOD.” (Sep. Statement, p.4.) This Court, on June 26, 2025, granted Plaintiff’s prior motion to compel as to this request. Defendant was required to produce “all wage or earnings statements,” for all Class Members in the Claim Period. Plaintiff now argues that Defendant has not fully complied and specifically seeks “unmanipulated wage statements for all Class Members . . .” as well as “complete wage statements for all Class Members for the entire claim period.” (Mot., pp. 3 & 7.)

Defendant has previously provided (1) the entirety of the pay data for the putative class; (2) Plaintiff’s wage statements; (3) redacted exemplars of wages statements for a sampling of 23 different employees. (Opp., 7:5-7; Chemers Decl., ¶10.) Defendant does not dispute that it has *not* provided all the requested physical class member wage statements. Moreover, Defendant “does not dispute that wage statements are relevant to Plaintiff’s claims.” Instead, Defendant essentially argues that “Plaintiff is not entitled to every wage statement for every putative class member for the entire covered period before a class is certified.” (Opp., p.7.)

Notably, Defendant’s written response to number 10 asserts that the request is “overly broad and burdensome,” among other things. (Sep. Statement, p.4.) Though, again notably, Defendant clearly agreed to “produce the redacted pay data of the putative class for the covered period.” (Sep. Statement, p.5.) “To the extent that the formatting of wages statements for other putative class members has differed in the proposed liability period, Defendant will provide copies of the same.” (*Ibid.*) Thus, there appears to be a good faith effort to produce the requested information, if not the actual statements *per se*, as requested.

As to the argument that a sampling of the actual wage statements (in addition to the data already provided) is sufficient, certainly, many parties stipulate to a sampling prior to certification for purposes of valuation prior to mediation, or they argue that a random sampling in response to pre-certification discovery is proper because full production would be unduly burdensome at that stage. However, these arguments were more appropriately set out at the June 26, 2025, motion to compel. Defendant's Opposition to that prior motion *did not* argue that the scope was burdensome or that a sampling was an appropriate response. Rather, it simply indicated that Defendant was "willing to further supplement its responses to identify what documents/ data are being produced as responsive to each of Plaintiff's individual requests." (Opp, filed April 17, 2025, p.6 [argument as to request nos. 1-2, 10, 30-32, and 41-50].) Thus, the Court *granted* Plaintiff's motion for all wage statements for the Class Period (though, the Court notes it did not require waiver of objections).

Here, while it may seem reasonable that the *information* is provided, the Court is constrained to the context and ruling on the June 26, 2025, motion. Therefore, the Court would grant the motion. However, given the context and good faith attempt to provide the requested data, the Court would forgo sanctions.
